

IN THE DISTRICT COURT OF APPEAL OF THE STATE OF FLORIDA
SECOND DISTRICT

CHRISTOPHER HANSON,

Appellant/Respondent/Husband,v.SARAH HANSON,

Appellee/Petitioner/Wife.

Case No.: 2D2025-1936

L.T. Case No.: 24-DR-001150

Division: A

AMENDED EMERGENCY MOTION FOR STAY PENDING APPEAL

COMES NOW, Appellant/Respondent/Husband, Christopher Hanson, pursuant to Florida Rule of Appellate Procedure 9.310(a) and (f), and moves this Honorable Court for an emergency stay of all proceedings in the lower tribunal pending resolution of the appeal of the non-final "Order Denying Transfer of Venue" rendered on June 24, 2025, by the Circuit Court of the Thirteenth Judicial Circuit in and for Hillsborough County, Florida.

In support thereof, Appellant states:

1. On July 22, 2025, Appellant filed a Notice of Appeal with the lower tribunal clerk, invoking this Court's jurisdiction under Rule 9.130(a)(3)(A) to review the non-final order determining venue.

2. Concurrently, Appellant filed a Motion for Stay Pending Appeal in the lower tribunal, as required by Rule 9.310(a), arguing that continuation of proceedings would cause irreparable harm due to the lower court's demonstrated bias, improper venue, obstruction of discovery, and risk to the minor children (as detailed in the motion, attached hereto as Exhibit A).
3. Despite multiple good-faith attempts to schedule a hearing on the stay motion—including emails dated July 22, 24, and 28, 2025 (attached hereto as Exhibit B)—the lower tribunal has failed to respond or set a hearing.
4. This inaction persists even though a full-day hearing on Appellee's motions is scheduled for August 8, 2025, which involves significant expense (e.g., court reporter fees) and potential harm to the children from unresolved discovery issues.
5. The lower tribunal's refusal to address the stay motion constitutes further good cause for this Court to grant relief under Rule 9.310(a), as it evidences ongoing bias and prejudice against Appellant.
6. Specifically:
 - A) The lower court has historically favored Appellee's counsel (Scott Paul Davis, Esq.) by obstructing Appellant's access to critical discovery (e.g., no ruling on the Motion to Compel Third Request for Production at Docket #163, pending since March 2025, and refusal to issue Chase

subpoenas as referenced in Appellant's Motion for Stay Pending Appeal, Exhibit A, ¶¶6–8

- B) This bias is further shown in the appealed order's failure to make findings on Appellant's detailed allegations of impropriety (as set forth in Appellant's Motion to Transfer Venue at Docket #183, ¶¶97–98, alleging prejudice to due process rights and favoritism toward Appellee's counsel; see also Motion to Vacate Order Denying Venue Transfer provided as Exhibit C below and at Docket #211, ¶¶4–11, detailing systemic bias, unchecked ethical violations by counsel, and failure to address discovery issues, instead erroneously concluding venue is "only proper in Hillsborough County" despite Appellee's residence in Pasco County and the interests of justice under Florida Statutes § 47.122.
- C) The lower Court's complete disregard for Husband's rights as shown in its handling of Husband's requests for an opportunity to be heard and a stay in these proceedings, further confirm the need to protect the children from further harm by transferring this case to Wife's current county of residence and/or order an immediate stay in the lower court proceedings, as argued in Motion to Vacate Order Denying Venue Transfer Exhibit C, ¶¶12–23, emphasizing due process balancing under Mathews v. Eldridge, 424 U.S. 319 (1976), and lack of state interest in preventing transfer to

Pasco County per Goedmakers v. Goedmakers, 520 So. 2d 575 (Fla. 1988).

D) Allowing the August 8 hearing to proceed would perpetuate this prejudice, forcing litigation in an improper forum and risking permanent harm to the children through unresolved safety and financial issues, not to mention the additional and potentially unnecessary expense and conflict that attending the hearing creates.

7. A stay is warranted to prevent irreparable harm under Rule 9.310, as no automatic stay applies to non-final appeals per Rule 9.130(f).

8. Continuing litigation under the 13th Circuit would:

A) Cause unnecessary expense and waste judicial resources on matters potentially mooted by this appeal (e.g., if venue is transferred to Pasco County).

B) Prejudice Appellant's due process rights in a biased tribunal, where the court has advanced Appellee's obstructive strategies (e.g., denying and then delaying simple reciprocal discovery critical to motions impacting the children, protecting the attorneys from consequences for their misconduct, etc.). as evidenced in the June 3, 2025, hearing transcript and the appealed Order Denying

Transfer of Venue at pp. 1–2 (citing § 47.011 but ignoring § 47.122 justice interests).

C) Pose a great risk of permanent harm to the children.

D) Further undermine the public's confidence in the judicial system.

9. Given the Court's well documented course of bias and corruption under Judge Ayers and Judge Felix's apparent continuation, support, or at least cover for that, it's critical for the welfare of the children, that this Court grant the stay immediately. (Exhibit C below).
10. Wife and her counsel have failed to identify any specific risks or even concerns with the children or Husband's capabilities as a parent.
11. There is no risk of prejudice or harm to anyone in granting the motion to stay.
12. Nevertheless, Wife's counsel refuses to agree to any compromise on discovery or even moving the August 8, 2025 hearing.
13. Consistent with Husband's experience for nearly a year and a half in the 13th Circuit, the trial Court refuses to address Husband's concerns despite the 3 follow ups for emergent scheduling below in Exhibit B.
14. Comparing how the Court was able to get everyone at the hearing on December 13th, on a day's notice for a motion where my then-current attorney was actively working against my interests (to avoid responsibility

for her own unethical conduct), to the lack of any response to my 3 attempts over the past week at emergent scheduling on a motion addressing great harm to my children, perfectly exemplifies the systemic corruption in the 13th Circuit.

15. This motion is filed emergently due to the imminent August 8 hearing (10 days away as of this filing on July 29, 2025). Appellant requests expedited consideration without oral argument, as the record (including Exhibits A and B) fully supports the need for immediate relief and continued systemic bias in the 13th Circuit.

16. No bond is required under Rule 9.310(b)(2), as the order is non-monetary and involves venue/justice interests.

17. Appellant has conferred with Appellee's counsel via email on July 28, 2025, but he insists on attending the August 8, 2025 hearing as scheduled.

18. Appellant/Husband swears as an attorney/officer of the Court and subject to penalties including perjury, to the truthfulness and evidentiary support for all statements included herein and throughout this litigation.

19. A formal appendix will accompany the Appellate Brief on the venue transfer issue, and/or by request of anyone at the Second DCA before that.

20. Addressing this as soon as possible is imperative given the consistent patterns of corruption to date including weaponization of the children.

21. Appellant/Husband has now paid the \$300 appellate fee and filed a notice of related case under Rule 9.900(k), and now an order granting the stay is appropriate and necessary.

WHEREFORE, Appellant respectfully requests that this Court grant an emergency stay of all proceedings in the lower tribunal pending appeal, or such other relief as deemed just and proper.

Date: July 29, 2025

Respectfully submitted,

/s/ Christopher Hanson

Christopher Hanson

Florida Bar No. 44094

727-409-5738

Primary E-Mail: cahanson77@yahoo.com

Appellant/Respondent/Husband

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing has been furnished to Scott Paul Davis, Esq., via email to scott@davislawtampa.com and service@davislawtampa.com, and all others on the e-service list, on this 29th day of July, 2025.

/s/ Christopher Hanson

Christopher Hanson

CERTIFICATE OF COMPLIANCE

I HEREBY CERTIFY that this Reply complies with Florida Rule of Appellate Procedure 9.100 and the Second District Court of Appeal's formatting standards. It is submitted in Times New Roman, 14-point font, double-spaced, and with 1-inch margins.

/s/ Christopher Hanson

Christopher Hanson

Exhibit A:

Copy of Motion for Stay Pending
Appeal filed July 22, 2025. (Docket
#215)

IN THE CIRCUIT COURT OF THE THIRTEENTH JUDICIAL CIRCUIT
IN AND FOR HILLSBOROUGH COUNTY, FLORIDA
FAMILY LAW DIVISION

IN RE: THE MARRIAGE OF
SARAH HANSON,
Petitioner,
and
CHRISTOPHER HANSON,
Respondent.

Case No.: 24-DR-1150

Division: A

MOTION FOR STAY PENDING APPEAL

COMES NOW, Respondent/Husband, Christopher Hanson, pursuant to Florida Rule of Appellate Procedure 9.310, and respectfully moves this Court for a stay of proceedings pending the appeal of the Order Denying Transfer of Venue, rendered on June 24, 2025, and in support thereof states:

1. On June 24, 2025, this Court entered an Order Denying Transfer of Venue, which Respondent/Husband has appealed to the Second District Court of Appeal (Notice of Appeal filed on July 21, 2025).
2. Continuing proceedings in this Court during the pendency of the appeal will prejudice Respondent/Husband and violates his due process rights to a fair and impartial tribunal, as detailed in Husband's Motion to Transfer Venue and First Motion to disqualify (Docket #204, 112).

3. Specifically, the Court covered for and even advanced Mr. Davis's improper strategy to obstruct Husband's access to discovery critically relevant to Husband's arguments on Wife's motions set for hearing on August 8, 2025. This actively places the children at risk through weaponizing them into pawns meant to deter reasonable discovery efforts.
4. The Court had and continues to have the opportunity to prevent that by allowing some simple, reciprocal discovery.
5. Mr. Davis refuses to produce even non-objectionable discovery such as a response to Husband's third Request for Production at Docket #163.
6. Despite the lack of any objection or response to the motion, the fact that Mr. Davis has access to much of the information in his office, and numerous follow ups for a response, Mr. Davis has failed to produce anything despite the motion to compel pending since March.
7. Unfortunately, Mr. Davis's actions and the Court's refusal to address the basic discovery issue at the core of this dispute continue to prolong this process and damage this family.
8. The Court should order at a minimum, a response to the third request to produce, and for the Chase subpoenas to go out in order to finally move this case forward.
9. A stay will serve the interests of justice as it will allow the parties to have these important matters determined by an impartial tribunal.
10. Allowing the proceedings to continue in the 13th Circuit under these circumstances poses a great risk of permanent harm to the children.
11. Respondent/Husband requests that this Court stay all proceedings or, in the alternative, that the Second District Court of Appeal grant such relief if this Court denies the motion.

WHEREFORE, Respondent/Husband respectfully requests that this Court order a response to at least the third Request for production within 10 days, for the Chase Subpoenas go out immediately, and grant a stay of proceedings pending appeal.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing has been furnished to Scott Paul Davis, Esq., via email to scott@davislawtampa.com and service@davislawtampa.com, and all others designated on the e-service list on this 22nd day of July, 2025.

/s/ Christopher Hanson

CHRISTOPHER HANSON

Primary E-Mail: cahanson77@yahoo.com

Exhibit B:

Copies of emails dated July 21–28,
2025, requesting hearing scheduling.
(Not yet on docket).

Scheduling - emergent hearing on Motion to stay proceedings, request for emergent hearing

cahanson77@yahoo.com

To: Div, and 1 other, Cc: Chris, and 1 other

.

Mon, Jul 28 at 11:05 AM

Message Body

Hello - I'm following up to schedule the hearing on my motion to stay proceedings. There is a hearing on 8-8-25 that's going to involve significant expense and potential serious harm to the children. Matters pending before the Second DCA may impact that and even obviate the need for some or all of the hearings. We already spent several hours on some of these issues at a hearing with Judge Ayers, that this Court is apparently throwing out or at least not use again. I'm trying to prevent more waste and damage. Please let me know on setting the hearing ASAP. Thank you.

Chris

On Thursday, July 24, 2025 at 08:32:25 AM EDT, cahanson77@yahoo.com
<cahanson77@yahoo.com> wrote:

Good morning. I filed the motion to stay a couple of days ago. There is a significant expense to reserving a court reporter for the 8-8-25 hearing. I don't think attending that serves anyone at this point. I believe I also have an option to file the motion to stay with the appellate Court which I need to do ASAP given the 8-8 hearing. Please let me know when we can get a hearing on the motion to stay. Thank you.

Chris

On Tuesday, July 22, 2025 at 11:43:04 AM EDT, cahanson77@yahoo.com
<cahanson77@yahoo.com> wrote:

Good morning. None of those dates will help me. The concerning hearing is set for 8-8-25.

You will find courtesy copies of the notice of appeal and motion to stay attached. I'm hoping the Judge will find a way to address this before 8-8-25. I believe that's a full day of hearings on the Judge's calendar. It's a lot of time and expense given the pending appeal. Please let me know if you need more info from me.

Thank you.

Chris

On Tuesday, July 22, 2025 at 09:24:38 AM EDT, Div A UFC Domestic Relations/Family
<famlawdiva@fljud13.org> wrote:

Good morning,

Please be advised that our office cannot set hearings on Motions that have not yet been filed.

We will try our best to accommodate with the earliest available dates/times for a 30-minute hearing on the Motion to Vacate filed 07/03/25. Thank you.

8/19 at 1:30pm, 2:30pm

9/4 at 10:00am

9/8 at 11:30am

9/22 at 3:00pm

Please confirm with the court that the above dates are still available as they have also been provided to others for scheduling.

Ellen Courtemanche

Judicial Assistant

Honorable Matthew L. Felix

Circuit Family Law Division A

800 E. Twiggs St.

Tampa, FL 33602

Courtroom 411

(813) 272-6992

FamLawDivA@fljud13.org

Division A Procedures/Preferences:

<https://www.fljud13.org/JudicialDirectory/MatthewLFelix.aspx>

REMEMBER TO COPY ALL PARTIES ON ALL EMAIL CORRESPONDENCE WITH THE COURT.

DO NOT SEND DUPLICATE EMAILS as this will delay a response.

Zoom information:

Zoom Link: <https://fljud13-org.zoom.us/j/96980509625>

Meeting ID: 969 8050 9625

No password required

From: cahanson77@yahoo.com <cahanson77@yahoo.com>

Sent: Monday, July 21, 2025 11:07 PM

To: Div A UFC Domestic Relations/Family <FAMLAWDIVA@fljud13.org>; Scott Davis
<scott@davislawtampa.com>

Cc: Chris Hanson <christophhanson77@gmail.com>; Sarah Hanson
<sahanson@aainsco.com>

Subject: Re: Husband motion to vacate order on venue transfer filed July 3, 2025

Warning: This is an external email and has a suspicious subject or content. Please take care when clicking links or opening attachments. When in doubt, contact the Helpdesk.

Also, I'm filing a notice of appeal on the order denying venue transfer and a motion to stay proceedings pending a determination on that. I'm not sure if the motion to stay proceedings requires a hearing, but perhaps we can hear that at the same time as the motion for rehearing. I should have those both filed by tomorrow sometime.

It makes sense to try and hear that ASAP as if the 8-8-25 hearing is not going forward, I'm sure everyone would like that time opened up on their calendars. Please let me know about setting the hearing ASAP. Thanks.

Chris

On Monday, July 21, 2025 at 03:25:48 PM EDT, cahanson77@yahoo.com
<cahanson77@yahoo.com> wrote:

Hi - I think a half hour should suffice. Thanks.

On Monday, July 21, 2025 at 11:27:51 AM EDT, Div A UFC Domestic Relations/Family
<famlawdiva@fljud13.org> wrote:

Good morning,

How much time do you need for the hearing? Thank you.

Ellen Courtemanche

Judicial Assistant

Honorable Matthew L. Felix

Circuit Family Law Division A

800 E. Twiggs St.

EXHIBIT C:

Copy of motion to vacate order
denying venue transfer (Docket #211).

IN THE CIRCUIT COURT OF THE THIRTEENTH JUDICIAL CIRCUIT

IN AND FOR HILLSBOROUGH COUNTY, FLORIDA

FAMILY DIVISION

IN RE: THE MARRIAGE OF

SARAH HANSON,

Wife,

Case No.: 24-DR-1150

and

Division: A

CHRISTOPHER HANSON,

Husband,

HUSBAND/RESPONDENT'S MOTION TO VACATE, FOR
REHEARING/RECONSIDERATION ON ORDER DENYING MOTION TO TRANSFER VENUE
BASED ON VIOLATIONS OF HUSBAND'S CONSTITUTIONAL RIGHTS TO DUE PROCESS
INCLUDING A FAIR AND IMPARTIAL TRIBUNAL

COMES NOW Husband, CHRISTOPHER HANSON, on his own behalf, and files this Motion for Rehearing on the Court's June 24, 2025 Order Denying Venue Transfer (DIN 204), pursuant to Fla. R. Civ. P. 1.530 and Fla. Fam. L. R. P. 12.530, and/or for reconsideration, in equity, and states:

1. Husband seeks an order vacating the Court's June 24, 2025 order, and an order granting transfer in its place or at a minimum, reconsideration, opportunity to be heard, and/or formal findings of fact relating to the constitutional concerns and Husband's allegations of discovery and ethical violations throughout, as the current order misapplies the law and violates Husband's constitutional right to a fair and impartial tribunal.

I. **The Court's June 24, 2025 Order Fails to Address Husband's due process rights and "Interest of Justice" Under Fla. Stat. § 47.122, requiring the Court vacate and enter an order granting transfer in its place.**

2. Husband's motion to transfer venue relies on Fla. Stat. § 47.122, specifically on the "in the interest of justice" prong allowing venue transfer separate and distinct from the convenience-based arguments in case law cited in the order. (DIN 183, ¶17 and DIN 204).

3. Judge Felix's order (DIN 204, p. 2, ¶C-D) misconstrues the Husband's request as a forum non conveniens challenge, focusing on inconvenience rather than the Husband's real concern: judicial bias undermining due process (DIN 183, ¶8).
4. Husband presented overwhelming, consistent, and unrefuted evidence of systemic problems within the 13th Circuit including pervasive unchecked ethical violations from Mr. Davis, his mafioso style control over what Husband's attorneys were willing to litigate, (DIN 72, 87, 88, 98, 109, 118 167, 168, 183) and consistent bias from Judge Ayers—e.g., eye-rolling during proceedings and then lying about or at least refusing to provide the evidence that would tell if she were lying about it (DIN 183, ¶77-80; Docket #183), calling Wife's counsel, Mr. Davis, a "Teddy Bear" while refusing to address undisputed ethical violations (DIN 183, ¶30; Docket #109, p. 16, L11-16), and failing to enforce even reciprocal discovery for Husband while ignoring Wife's many discovery violations aimed at concealment (DIN 183, ¶21-27; Docket #183)—creating a reasonable fear of impartiality and bias against him coming from throughout the 13th Circuit (DIN 183, ¶12).
5. Proper consideration of relevant authority requires the Court to vacate the order at DIN 204 and enter an order transferring venue to Wife's county of residence, Pasco County.

A. Husband's Constitutional Right to an Impartial Tribunal is Once Again Implicated by this Court's Failure to Consider Husband's "Interest of Justice" and due process rights in its recent orders.

6. The order's failure to consider Husband's "interest of justice" which is explicitly referenced in Fla. Stat. § 47.122, is another concerning fact in the clear pattern of bias against Husband and in support of the corrupt and unethical efforts to conceal discoverable information Caperton v. A.T. Massey Coal Co., 556 U.S. 868, 876 (2009), and Livingston v. State, 441 So. 2d 1083, 1087 (Fla. 1983).
7. Although Judge Ayers was disqualified post-motion, systemic bias in Hillsborough County (consistent with Husband's allegations since at least December 13, 2024) persists as demonstrated by the Court's continued refusal/failure to address discovery and ethical violations by Mr. Davis causing significant, documented harm to Husband and children. (DIN 183, ¶17, 30; Docket #98, #200, #204, 209, 210).

8. Husband just recently offered the Court detailed factual information about the nearly unbelievable violations of discovery and ethical rules from Mr. Davis and Judge Ayers both at the hearing on June 3, 2025 and in the motion filed at DIN 209. (Transcript of hearing to be provided upon receipt).
9. The Court's refusal to assist in facilitating the simple discovery issue for Husband, his sole request in all of this litigation for over a year, suggests a continuing intent to shield Mr. Davis and Wife from accountability, allowing their retaliatory motions to proceed before Husband even gets reciprocal discovery.
10. The level of unfairness in the 13th Circuit's handling of this matter, which has allowed the ethical and discovery violations throughout while providing active cover, demonstrates deep bias at a minimum and is concerning for much worse. (DIN 72, 87, 88, 98, 109, 118 167, 168, 183, 192, 198, 200, 204, 209, 210).
11. The appearance of bias—e.g., Judge Ayers's dismissive conduct (DIN 183, ¶77-80) and leniency toward Mr. Davis, and now the failure to consider Husband's interest of justice (DIN 183, 204) and disparate treatment of Husband's request for an emergency hearing and Ms. Hodz's request, (DIN 72, 87, 88, 98, 109, 167, 168, 183, 209, 210))—requires relief in the form of transfer to uphold judicial integrity.

B. The Court's failure to consider Husband's Constitutional rights and perform the appropriate analysis in balancing husband's interest in justice with any state interest in the current venue statute, requires vacating the order and entering one granting transfer in its place.

12. The Court must weigh the state's interest in enacting Fla. Stat. § 47.011's venue rules against the equitable flexibility and due process considerations required under Fla. Stat. § 47.122, and the Florida and US Constitutions.
13. Mathews v. Eldridge, 424 U.S. 319, 335 (1976), the U.S. Supreme Court articulated a three-part balancing test to assess whether a statutory procedure satisfies procedural due process:
 - The private interest affected by the official action;
 - The risk of an erroneous deprivation of that interest under the current procedures, and the probable value of additional or substitute safeguards;

- The government's interest, including the function involved and the burdens of alternative procedures.

14. The private interest at stake is Husband's right to due process, something that the Court specifically ignores in its analysis.
15. Given the Court's refusal to hold Mr. Davis accountable for his unethical conduct and the expanding impact that continues to have in eroding any sense of fairness and justice, is extremely solid and requires real consideration by this Court.
16. The risk of an erroneous deprivation of that interest under the current procedures involves the health and welfare of two young children who've already experienced a full year of unnecessary conflict based on systemic problems within the 13th Circuit. (DIN 209, 210).
17. Despite extensive evidence of increasing weaponization of the children in this divorce action, the 13th Circuit refuses to act nor even make any findings of fact relating to Mr. Davis's undisputed, unethical conduct, rendering this another strong consideration in favor of transfer.
18. Proper consideration of the state interest, the third prong, demonstrates that the Supreme Court has already answered this question – there is no legitimate state interest in protecting a litigant from a transfer of venue to her county of residence. Goedmakers v. Goedmakers, 520 So. 2d 575, 577-78 (Fla. 1988).
19. The County where a party resides, is an appropriate venue for transitory actions like the present one. Id.
20. The Goedmakers decision, based on a previous, but similar version of the current statute, recognizes that divorce's transitory nature permits venue changes when fairness is at stake, specifically referencing the County of residence for a defendant in such proceedings.
21. Husband resides in Hillsborough County (DIN 79, ¶13), but Pasco County, is a reasonable, more convenient venue for Wife as she currently resides in Pasco County.
22. Husband's willingness to transfer venue farther away to avoid the systemic bias in Hillsborough County provides additional credibility and support for his position.

23. The Court's order focusing on Hillsborough County (DIN 204, p. 3, ¶F) completely disregards Husband's bias allegations and due process rights effectively trapping him and his family under a Courthouse that vehemently opposes him and sole objective that Mr. Davis has successfully and corruptly obstructed for over a year under the 13th Circuit.

II. **Wife's objection to transfer to Pasco County, despite her residence there, suggests "forum shopping" type motivations and raises further concerns over the preferential treatment, bias in favor of Mr. Davis, and systemic problems within the 13th Circuit.**

24. The Wife's objection to transferring venue to Pasco County, her residence, lacks legitimate basis and suggests reliance on Hillsborough County's biased environment (DIN 183, ¶15).

25. Goedmakers analysis cautioning against forum shopping (520 So. 2d at 578), supports overruling Wife's objection based on her preference for Hillsborough County given Mr. Davis's favorable treatment including complete lack of accountability for ethical and discovery violations (DIN 183, ¶15, 36; Docket #109, p. 16, L11-16).

26. Ethical violations continue and expand in this case, causing further damage to the children involved while neither Wife, Mr. Davis, nor Judge Ayers have ever refuted Husband's bias and ethical violation claims throughout the record.

27. The relevant facts and law require overruling Wife's objections, vacating the order, and granting the transfer to Pasco County.

III. **The Court's Reliance on McGee and Vitale Is Erroneous as those cases lack the constitutional concerns raised in the present case before this Court.**

28. Judge Felix's order (DIN 204, p. 2, ¶D) improperly relies on McGee v. McGee, 145 So. 3d 955 (Fla. 1st DCA 2014), and Vitale v. Vitale, 994 So. 2d 1242 (Fla. 4th DCA 2008), to deny transfer, compounding the error referenced above in failing to do the constitutional analysis.

29. **Distinction from Forum Non Conveniens** - McGee and Vitale address forum non conveniens, focusing on inconvenience, not bias and due process rights under Husband's interest in justice (DIN 183, ¶18).

30. Husband's allegations and evidence raise clear constitutional issues under Caperton and Livingston, rendering McGee and Vitale inapplicable (DIN 183, ¶25-26).

31. Additionally and alternatively, the cases the Court cites in the June 24, 2025 order are **Non-Binding Precedent**.

32. McGee (1st DCA) and Vitale (4th DCA) are not controlling in the Second District, where this Court sits, unlike Goedmakers (Fla. 1988) which support venue flexibility and impartiality (DIN 183, ¶18, 12, 23).

IV. Transfer Is Essential return this case so Justice may "reappear" within the 13th Circuit which has included so many actions from multiple lawyers to create a truly shocking "appearance" as to Justice's current status here.

33. The Court's June 24, 2025 order (DIN 204) misapplies McGee and Vitale, overlooks the "interest of justice" under Fla. Stat. § 47.122, and continues to violate Husband's due process rights.

34. Goedmakers supports transfer to Pasco County, where Wife resides (520 So. 2d at 577-78).

35. Wife's opposition and the systemic bias in Hillsborough favoring Mr. Davis (DIN 183, ¶15, 13-16) further support transfer to protect the Husband's rights, the children's welfare, and the appearance of Justice. Under proper constitutional analysis.

36. There is simply no good faith nor rational basis why the Legislature would create a jurisdictional trap where irrespective of bias and even the complete demolition of justice, litigants can truly never escape a given Courthouse's dominion over them.

37. Such an interpretation is nonsensical and directly conflicts with Goedmakers which supports venue lying where Wife resides under these facts, Pasco County.

38. There is no rational state interest in preventing a litigant, Husband, from successfully finding venue, on a transitory suit, this divorce, in the venue where the opposing party resides.
39. This is the controlling precedent and the Court should transfer jurisdiction to Pasco County immediately.
40. Specific findings of fact are necessary regarding discovery and ethical violations at the heart of Husband's due process arguments to allow for meaningful appellate review.
41. Failing to make such findings of fact will likely continue to support Wife's delay, harass, and conceal strategy by prolonging the appellate process.
42. At a minimum, the Court should vacate the June 24, 2024 order, and issue a new order properly considering the facts and relevant law.

WHEREFORE, the Husband respectfully requests that this Court:

- A. Vacate the June 24, 2025 order
- B. Transfer venue to Pasco County or another neutral venue;
- C. Deny the Wife's request for attorney's fees;
- D. Award the Husband attorney's fees for this motion;
- E. Or in the alternative, make specific findings of fact regarding discovery and ethical violations at the heart of Husband's due process arguments, perform the appropriate analysis under Matthews, and issue a new order properly considering the facts and relevant law.
- F. And/or schedule an emergency hearing to address these and the issues raised in the separate motion for emergent relief ASAP.
- G. Grant such other relief as the Court deems just and proper. DATED: July 3, 2025 /s/

/s/Christopher Hanson

Christopher Hanson

Florida Bar #44094

Self-Represented Husband